

Amendment No. 2 to HB2364

Johnson
Signature of Sponsor

AMEND Senate Bill No. 2599*

House Bill No. 2364

by inserting the following sections immediately preceding the effective date section and renumbering the effective date section accordingly:

SECTION __. Tennessee Code Annotated, Title 49, Chapter 6, Part 26, is amended by adding the following as a new section:

(a) A participating school that receives information regarding significantly disruptive behavior or a threat of violence directed toward, or occurring on the grounds of, the participating school and that reports the behavior or threat to a state or local law enforcement agency, shall notify the parents and guardians of students enrolled in the participating school of the behavior or threat, but shall only report a threat of violence if the participating school has determined that the threat is credible following a threat assessment conducted pursuant to a policy of the participating school or a threat assessment protocol approved by the department of education.

(b) The participating school shall notify parents and guardians within forty-eight (48) hours of the participating school reporting significantly disruptive behavior or a threat of violence to a state or local law enforcement agency; provided, that for a threat of violence reported to a state or local law enforcement agency, the participating school shall only notify parents and guardians pursuant to this subsection (b) if the participating school has determined the threat of violence to be credible. Parental notification made pursuant to this subsection (b) may be made using existing communication methods for providing information to parents and guardians.

(c) For purposes of this section:

(1) A report made to a school resource officer or an off-duty law enforcement officer who is serving as an armed school security officer is not a report to a state or local law enforcement agency. The involvement of a school resource officer or an armed school security officer, or any consultation by a school resource officer, armed school security officer, or any other administrative staff or school personnel with a state or local law enforcement agency or the department of safety for purposes of assessing, investigating, or requesting assistance with significantly disruptive behavior or a threat of violence does not, on its own, constitute a determination by the participating school, if applicable, that a threat of violence is credible for purposes of subsection (a); and

(2) A participating school shall determine a threat of violence to be credible if the person who communicated the threat of violence has the intent and apparent capability to carry out the targeted act of violence.

(d) Each participating school shall report at each quarterly meeting:

(1) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, the participating school requiring notice to parents and guardians in accordance with subsection (b) for the respective quarter; and

(2) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, the participating school requiring notice to parents and guardians in accordance with subsection (b) for the year to date.

SECTION __. Tennessee Code Annotated, Title 49, Chapter 6, Part 35, is amended by adding the following as a new section:

(a) A private school that enrolls a recipient and that receives information regarding significantly disruptive behavior or a threat of violence directed toward, or occurring on the grounds of, the private school, and that reports the behavior or threat to

a state or local law enforcement agency, shall notify the parents and guardians of students enrolled in the private school of the behavior or threat, but shall only report a threat of violence if the private school has determined that the threat is credible following a threat assessment conducted pursuant to a policy of the private school or a threat assessment protocol approved by the department of education.

(b) The private school shall notify parents and guardians within forty-eight (48) hours of the private school reporting significantly disruptive behavior or a threat of violence to a state or local law enforcement agency; provided, that for a threat of violence reported to a state or local law enforcement agency, the private school shall only notify parents and guardians pursuant to this subsection (b) if the private school has determined the threat of violence to be credible. Parental notification made pursuant to this subsection (b) may be made using existing communication methods for providing information to parents and guardians.

(c) For purposes of this section:

(1) A report made to a school resource officer or an off-duty law enforcement officer who is serving as an armed school security officer is not a report to a state or local law enforcement agency. The involvement of a school resource officer or an armed school security officer, or any consultation by a school resource officer, armed school security officer, or any other administrative staff or school personnel with a state or local law enforcement agency or the department of safety for purposes of assessing, investigating, or requesting assistance with significantly disruptive behavior or a threat of violence does not, on its own, constitute a determination by the private school, if applicable, that a threat of violence is credible for purposes of subsection (a); and

(2) A private school shall determine a threat of violence to be credible if the person who communicated the threat of violence has the intent and apparent capability to carry out the targeted act of violence.

(d) Each private school that enrolls a recipient shall report at each quarterly meeting:

(1) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, the private school requiring notice to parents and guardians in accordance with subsection (b) for the respective quarter; and

(2) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, the private school requiring notice to parents and guardians in accordance with subsection (b) for the year to date.